



**MANITOBA
OMBUDSMAN**

300 - 5 Donald Street Winnipeg, MB, R3L 2T4
Phone: 204-982-9130 Toll Free: 1-800-665-0531
Fax: 204-942-7803
ombudsman@ombudsman.mb.ca
ombudsman.mb.ca

CONFIDENTIAL

September 10, 2024

Evan Rosner

Via email: evanroz@gmail.com

Our File: MO-07107

Consumer Protection and Government Services File: - 24CPG-0196

Dear Evan Rosner:

This concerns the complaint you filed under *The Freedom of Information and Protection of Privacy Act* (FIPPA) against the Manitoba Finance's (the public body) decision to take a 30-day extension to respond to your request for access. We understand that on January 16, 2024, the public body received your access request for:

The RTC contains a database in which the results of appeals made by tenants against rent increases above the guidelines are stored from the year 2020-2023. What is the total number of decisions described as varied, rescinded, and confirmed.

On February 14, 2024, the public body spoke to you stating that it would take the public body twenty hours to search for all requested records and that fees would be necessary to process your request. You then informed the public body to change the timeframe of the requested records to April 1, 2022 - March 31, 2023, or if possible, the calendar year of 2023. This reduced the scope of your request by two years' worth of records.

On February 29, 2024, the public body through a written notice advised you that in accordance with subclause 15(1)(b)(i) of FIPPA, it needed 30-day extension to process your request on the basis that a large number of records were requested or needed to be searched. The expected response time given was April 1, 2024.

In a complaint email sent to our office dated February 29, 2024, you indicated that you are complaining that additional days were added to address your request instead of the request being expedited. We then reached out to the public body to ask for an explanation of its reason for extending the timeframe so we could determine whether it was reasonable that the public body extended the time limit for responding.

In its response, the public body stated that after you notified them of the new timeframe for the records you were seeking it calculated the number of hours needed to provide the information requested. The public body stated an authority for approved overtime might be required and explained that the request requires manual search and preparation, and that a large number of records must be searched, but did not quantify the number of records. The public body explained that responding within the 45-day time limit would unreasonably interfere with its operations. The public body confirmed that on March 12, 2024, your access request was granted in full. This decision was issued twenty days earlier than the extended due date.

On May 13, 2024, we spoke with you by phone, and you stated that even though you received the information requested you would still like to pursue your complaint regarding the public body's decision to extend as you believe the public body was trying to prevent you from getting the data you requested, and you wanted our office to determine if the extension was warranted.

To better understand the public body's decision to extend, we requested that it provide a timeline of steps it completed during the initial 45-day period. We wanted to know if the public body was able to start the records search and the review and redaction process in a timely manner.

The public body disclosed that initially it was going to respond that the information requested was publicly available therefore under section 6.1, the access to information provisions of FIPPA would not apply. However, after consultations with the Residential Tenancies Commission (RTC) the public body learned that the requested information is not compiled and not available to the public. The public body also stated that in order to provide the requested information, it would have to create a record manually and estimated that twenty hours would be needed.

However, the public body was not able to clearly explain what steps it took between it received the FIPPA access request until it determined that the information requested was not readily available and it needed to conduct a record search. We asked the public body what areas were searched for records and how many records were responsive to the request. However, the public body did not provide a sufficient explanation on how the search for records was done, the number of responsive records or why overtime would be required to process this request.

Without sufficient information about what steps were required to complete the search and how many records were searched in order to locate responsive records, our office was not able to determine whether responding to the request within the

original timeframe of 45 days was unreasonable on the basis of the number of records, nor could we determine whether the additional time was necessary to respond to the request.

Therefore, we are unable to find that the public body was authorized to extend the time limit to respond under FIPPA and the complaint is supported. Given that the public body has already provided a response to you, our office is not taking any further steps regarding this matter.

If you have any questions or would like to discuss this matter further, please do not hesitate to contact me at 431-323-8059.

Sincerely,



Rowena Pascual Castro
Investigator, Access and Privacy Division

cc: Access and Privacy Branch, fippa@gov.mb.ca